

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 913

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO MEDICAID; AMENDING SECTION 56-267, IDAHO CODE, TO REVISE PROVISIONS REGARDING MEDICAID ELIGIBILITY EXPANSION; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 56-267, Idaho Code, be, and the same is hereby amended to read as follows:

56-267. MEDICAID ELIGIBILITY EXPANSION. (1) ~~Notwithstanding any provision of law or federal waiver to the contrary~~ Except as provided by subsection (6) of this section, the state shall amend its state plan to expand medicaid eligibility to include those persons under sixty-five (65) years of age whose modified adjusted gross income is one hundred thirty-three percent (133%) of the federal poverty level or below and who are not otherwise eligible for any other coverage under the state plan, in accordance with sections 1902(a)(10)(A)(i)(VIII) and 1902(e)(14) of the social security act.

(2) No later than ninety (90) days after approval of this act, the department shall submit any necessary state plan amendments to the United States department of health and human services, centers for medicare and medicaid services to implement the provisions of this section. The department is required and authorized to take all actions necessary to implement the provisions of this section as soon as practicable.

(3) Eligibility for medicaid as described in this section shall not be delayed if the centers for medicare and medicaid services fail to approve any waivers of the state plan for which the department applies, nor shall such eligibility be delayed while the department is considering or negotiating any waivers to the state plan. The department shall not implement any waiver that would result in a reduction in federal financial participation for persons identified in subsection (1) of this section below the ninety percent (90%) commitment described in section 1905(y) of the social security act.

(4) If section 1905(y) of the social security act is held unlawful or unconstitutional by the United States supreme court, then the legislature shall declare this section to be null, void, and of no force and effect.

(5) If federal financial participation for persons identified in subsection (1) of this section is reduced below the ninety percent (90%) commitment described in section 1905(y) of the social security act, then the senate and house of representatives health and welfare committees shall, as soon as practicable, review the effects of such reduction and make a recommendation to the legislature as to whether medicaid eligibility expansion should remain in effect. The review and recommendation described in this subsection shall be conducted by the date of adjournment of the regular legislative session following the date of reduction in federal financial participation. Notwithstanding any other provision of law to the contrary, if the

1 reduction in federal financial participation occurs outside of a state leg-
2 islative session, the department shall take any action necessary to offset
3 the increase in state funding, including but not limited to reductions in
4 provider payment rates or elimination of optional benefits. Such actions
5 shall be taken until such time as the state legislature may convene and de-
6 termine a proper course of action.

7 (6) No later than December 31, 2026, the department shall implement
8 the community engagement requirements established pursuant to 42 U.S.C.
9 1396a(xx). After the community engagement requirements have been imple-
10 mented:

11 (a) No person shall be enrolled in medicaid pursuant to this section un-
12 less such person demonstrates compliance with the community engagement
13 requirements for the three (3) consecutive months immediately preced-
14 ing the month during which the person applies; and

15 (b) The department shall disenroll from medicaid any person who is cur-
16 rently enrolled pursuant to this section who is unable to demonstrate
17 compliance with the community engagement requirements.

18 SECTION 2. An emergency existing therefor, which emergency is hereby
19 declared to exist, this act shall be in full force and effect on and after its
20 passage and approval.